

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Date Purchased:

SUMMONS

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MARILYN ORTIZ, as a Proposed Administratrix of the
Estate of NANDIL ORTIZ,

Plaintiff(s),

Plaintiff designates Bronx
County as the place of trial.

- against -

The basis of venue is:
Place of the occurrence

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DEPUTY INSPECTOR LOUIS
DECEGLIE OF THE 44TH PCT., DET. CARRERAS OF
THE 44TH PCT., P.O. BASORA, OF THE 44TH PCT.,
SHIELD # 19701 and P.O. MEVLING OF THE 44TH PCT.,

Plaintiff resides at:
40-03 29th Street
Long Island City, NY

Defendant(s).

County of Queens

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To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
October 3, 2018



MICHAEL BRAVERMAN
GETZ & BRAVERMAN, P.C.
Attorneys for Plaintiff(s)

MARILYN ORTIZ
172 East 161st Street
Bronx, New York 10451
(718) 993-3000
Our File No. 9178

TO: THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, NY 10007

DEPUTY INSPECTOR LOUIS DECEGLIE
OF THE 44TH PCT
2 E. 169TH Street
Bronx, New York 10452

DET. CARRERAS OF THE 44TH PTC
2 E. 169TH Street
Bronx, New York 10452

P.O. BASORA,
OF THE 44TH PCT., SHIELD # 19701
2 E. 169TH Street
Bronx, New York 10452

P.O. MEVLING OF THE 44TH PCT
2 E. 169TH Street
Bronx, New York 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
MARILYN ORTIZ, as the Administratrix of the
Estate of NANDIL ORTIZ,

Index No.:

Date Purchased:

VERIFIED COMPLAINT

Plaintiff(s),

- against -

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DEPUTY INSPECTOR LOUIS
DECEGLIE OF THE 44TH PCT., DET. CARRERAS OF
THE 44TH PCT., P.O. BASORA, OF THE 44TH PCT.,
SHIELD # 19701 and P.O. MEVLING OF THE 44TH PCT.,Defendant(s).
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Plaintiff, by her attorneys GETZ & BRAVERMAN, P.C., complaining of the Defendant
respectfully alleges, upon information and belief:

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF MARILYN ORTIZ FOR
WRONGFUL DEATH OF NANDIL ORTIZ, DECEASED**

1. Plaintiff **MARILYN ORTIZ** is the Proposed Administratrix of the Estate of
NANDIL ORTIZ.
2. That at all times hereinafter mentioned, decedent, **NANDIL ORTIZ**, was a resident
of the County of Bronx, City and State of New York.
3. That at all times hereinafter mentioned, Plaintiff **MARILYN ORTIZ and NANDIL
ORTIZ** were residents of the County of Bronx, State of New York.
4. That at all times hereinafter mentioned, Defendant **THE CITY OF NEW YORK**
was, and still is, a municipal corporation.

5. That at all times hereinafter mentioned, Defendant **NEW YORK CITY POLICE DEPARTMENT** was, and still is, a municipal corporation.

6. That at all times hereinafter mentioned, Defendant **NEW YORK CITY POLICE DEPARTMENT** was, and still is, a municipal corporation.

7. That prior hereto on February 22 , 2018, Honorable Justice Mitchell Danziger granted Plaintiff's Order to Show Cause to file late Notice of Claim, nun pro tunc.

8. That on July 19, 2018, pursuant to General Municipal Law 50(h), a hearing was held at the Office of the Comptroller or at the office of a designated agent.

9. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

10. That at all times herein mentioned, defendant **THE CITY OF NEW YORK**, was the owner of premises known as the 44th Precinct, 2 E 169th Street, County of Bronx, State of New York.

11. That at all times hereinafter mentioned, defendant **THE CITY OF NEW YORK**, operated the aforementioned premises.

12. That at all times hereinafter mentioned, defendant **THE CITY OF NEW YORK**, managed the aforementioned premises.

13. That at all times hereinafter mentioned, defendant **THE CITY OF NEW YORK**, maintained the aforementioned premises.

14. That at all times hereinafter mentioned, defendant **THE CITY OF NEW YORK**, controlled the aforementioned premises.

15. That at all times herein mentioned, defendant **NEW YORK POLICE DEPARTMENT**, was the owner of premises known as the 44th Precinct, 2 E 169th Street, County of Bronx, State of New York.

16. That at all times hereinafter mentioned, defendant **NEW YORK POLICE DEPARTMENT**, operated the aforementioned premises.

17. That at all times hereinafter mentioned, defendant **NEW YORK POLICE DEPARTMENT**, managed the aforementioned premises.

18. That at all times hereinafter mentioned, defendant **NEW YORK POLICE DEPARTMENT**, maintained the aforementioned premises.

19. That at all times hereinafter mentioned, defendant **NEW YORK POLICE DEPARTMENT**, controlled the aforementioned premises.

20. That at all times herein mentioned, defendant **DEPUTY INSPECTOR LOUIS DECEGLIE**, was the owner of premises known as the 44th Precinct, 2 E 169th Street, County of Bronx, State of New York.

21. That at all times hereinafter mentioned, defendant **DEPUTY INSPECTOR LOUIS DECEGLIE** operated the aforementioned premises.

22. That at all times hereinafter mentioned, defendant **DEPUTY INSPECTOR LOUIS DECEGLIE**, managed the aforementioned premises.

23. That at all times hereinafter mentioned, defendant **DEPUTY INSPECTOR LOUIS DECEGLIE**, maintained the aforementioned premises.

24. That at all times hereinafter mentioned, defendant **DEPUTY INSPECTOR LOUIS DECEGLIE**, controlled the aforementioned premises.

25. That at all times herein mentioned, defendant **DET. CARRERAS OF THE 44TH PCT.**, was the owner of premises known as the 44th Precinct, 2 E 169th Street, County of Bronx, State of New York.

26. That at all times hereinafter mentioned, defendant **DET. CARRERAS OF THE 44TH PCT.**, operated the aforementioned premises.

27. That at all times hereinafter mentioned, defendant **DET. CARRERAS OF THE 44TH PCT.**, managed the aforementioned premises.

28. That at all times hereinafter mentioned, defendant **DET. CARRERAS OF THE 44TH PCT.**, maintained the aforementioned premises.

29. That at all times hereinafter mentioned, defendant **DET. CARRERAS OF THE 44TH PCT.**, controlled the aforementioned premises.

30. That at all times herein mentioned, defendant **P.O. BASORA, SHIELD # 19701 OF THE 44TH PCT.**, was the owner of premises known as the 44th Precinct, 2 E 169th Street, County of Bronx, State of New York.

31. That at all times hereinafter mentioned, defendant defendant **P.O. BASORA, SHIELD # 19701 OF THE 44TH PCT.** operated the aforementioned premises.

32. That at all times hereinafter mentioned, defendant defendant **P.O. BASORA, SHIELD # 19701 OF THE 44TH PCT.**, managed the aforementioned premises.

33. That at all times hereinafter mentioned, defendant defendant **P.O. BASORA, SHIELD # 19701 OF THE 44TH PCT.**, maintained the aforementioned premises.

34. That at all times hereinafter mentioned, defendant defendant **P.O. BASORA, SHIELD # 19701 OF THE 44TH PCT.**, controlled the aforementioned premises.

35. That at all times herein mentioned, defendant **P.O. MEVLING OF THE 44TH PCT.**, was the owner of premises known as the 44th Precinct, 2 E 169th Street, County of Bronx, State of New York.

36. That at all times hereinafter mentioned, defendant defendant **P.O. MEVLING OF THE 44TH PCT.** operated the aforementioned premises.

37. That at all times hereinafter mentioned, defendant defendant **P.O. MEVLING OF THE 44TH PCT.**, managed the aforementioned premises.

38. That at all times hereinafter mentioned, defendant defendant **P.O. MEVLING OF THE 44TH PCT.**, maintained the aforementioned premises.

39. That at all times hereinafter mentioned, defendant defendant **P.O. MEVLING OF THE 44TH PCT.**, controlled the aforementioned premises.

40. That on August 22, 2017, decedent **NANDIL ORTIZ**, was lawfully upon the aforesaid premises.

41. That at the aforesaid time and place decedent **NANDIL ORTIZ** sustained severe and permanent personal injuries when claimant was found hanging in his cell at the aforesaid location which resulted in his death.

42. That the accident, injuries and death of decedent, **NANDIL ORTIZ**, were caused solely as a result of the negligence of the defendants herein without any negligence on the part of the Plaintiffs herein contributing thereto.

43. That the negligence of the defendants herein consisted in the ownership, operation, maintenance, management and control of the aforesaid premises in a reckless, careless and negligent manner, while deceased plaintiff was in the custody of the New York City Police Department, deceased claimant was found hanging in his cell at the aforesaid location on

August 22, 2017. **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, DEPUTY INSPECTOR LOUIS DECEGLIE OF THE 44TH PCT., DET. CARRERAS OF THE 44TH PCT, P.O. BASORA, SHIELD # 19701, OF THE 44TH PCT. and P.O. MEVLING OF THE 44TH PCT.,** their agents, servants and/or employees, departments, agencies and those acting under their directions behest and control, in their failure to properly investigate and/or evaluate the results of any investigation of those persons, agents, servants and/or employees hired to operate, manage, control, supervise, arrest at and/or control said detainees; in failing to protect the plaintiff's decedent from foreseeable harm; in failing to hire efficient and/or sufficient personnel in connection with the operation, management, control at and/or supervision of said jail cells; in failing to train their employees so as to enable them to control detainees and/or persons being detained; in failing to properly and/or adequately monitor and/or supervise the activities in which the deceased claimant was involved in on the day of the incident; in abandoning the deceased Plaintiff on the day in question; in failing to conduct suicide prevention screening and/or failing to properly screen for suicide; in failing to properly observe deceased Plaintiff; in failing to follow internal procedures; in failing to institute a proper suicide prevention policy; in failing to adequately train its employees; in failing to properly scree or hire employees; in failing to protect deceased Plaintiff from foreseeable harm; and in failing to render timely and appropriate medical attention.

44. At the time of his death, decedent, **NANDIL ORTIZ**, was 32 years of age and is survived by his only distributes, his wife Proposed Administratrix, **MARILYN ORTIZ**.

45. Plaintiffs were compelled and did expend sums of money for extensive medical treatment as well as sums of money for the funeral expenses.

46. That solely as a result of the aforesaid, the estate of decedent, **NANDIL ORTIZ**, has been damage in the sum of FIVE MILLION (\$5,000,000.00) DOLLARS.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF MARILYN
ORTIZ FOR CONSCIOUS PAIN AND SUFFERING OF NANDIL ORTIZ**

47. That Plaintiffs repeat, reiterate and reallege each and every allegation of the Complaint, with the same force and effect as if more fully set forth at length.

48. That as a result of the aforementioned accident, **NANDIL ORTIZ**, lived before his death and suffered severe conscious pain, agony and permanent multiple injuries which ultimately resulted in his death on August 22, 2017.

49. That solely as a result of the aforesaid accident, decedent, **NANDIL ORTIZ**, suffered severe permanent personal injuries, including conscious pain and suffering, which resulted in his death on August 22, 2017.

50. That solely as a result of the aforesaid, the estate of the decedent **NANDIL ORTIZ** has been damaged in the sum of FIVE MILLION (\$5,000,000.00) DOLLARS.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF MARILYN ORTIZ FOR
LOSS OF SERVICES**

51. That Plaintiffs repeat, reiterate and reallege each and every allegation of the Complaint, with the same force and effect as if more fully set forth at length.

52. At all times hereinafter mentioned, Plaintiff, **MARILYN ORTIZ** was the wife of decedent, **NANDIL ORTIZ**, and they cohabited together.

53. At all times hereinafter, Plaintiff, **MARILYN ORTIZ**, was entitled to the society, comfort and services of said decedent **NANDIL ORTIZ**.

54. That solely as a result of the aforesaid death of her husband, Plaintiff **MARILYN ORTIZ**, was deprived of the society, comfort and services of said decedent **NANDIL ORTIZ**, and will be deprived of the society, comfort and services for the remainder of her life.

55. That solely as a result of the aforesaid, the estate of the Plaintiff, **MARILYN ORTIZ** has been damaged in the sum of FIVE MILLION (\$5,000,000.00) DOLLARS.

WHEREFORE, Plaintiff demands judgment against the Defendants herein, in the sum of FIVE MILLION (\$5,000,000.00) DOLLARS, together with the costs and disbursements of this action.

Dated: Bronx, New York

October 3, 2018

Yours, etc.



MICHAEL BRAVERMAN
GETZ & BRAVERMAN, P.C.
Attorneys for Plaintiff(s)

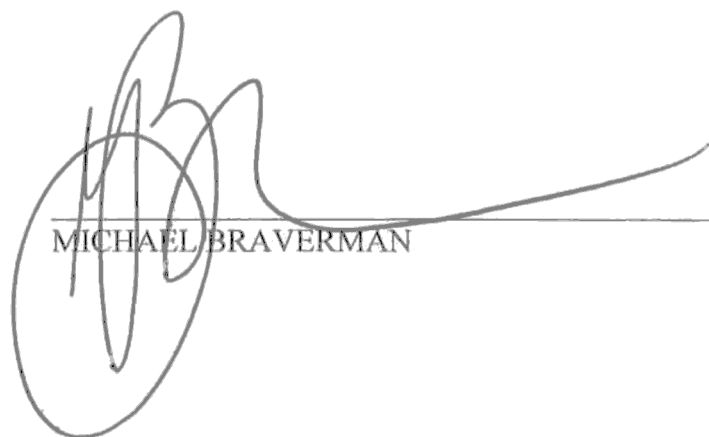
MARILYN ORTIZ
172 East 161st Street
Bronx, New York 10451
(718) 993-3000
Our File No: 9178

ATTORNEY'S VERIFICATION

MICHAEL BRAVERMAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am an attorney at GETZ & BRAVERMAN, P.C., attorneys of record for Plaintiff(s), **MARILYN ORTIZ**. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED: Bronx, New York
 October 3, 2018



MICHAEL BRAVERMAN

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INSPECTOR LOUIS DECEGLIE OF THE 44TH PCT., DET. CARRERAS OF THE 44TH PTC,
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SUMMONS AND VERIFIED COMPLAINT

GETZ & BRAVERMAN, P.C.

Attorneys for MARILYN ORTIZ as Administratrix of the Estate of NANDIL ORTIZ

172 East 161st Street
Bronx, New York 10451
(718) 993-3000

TO: